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ARTICLE

Christian Foster Parents Continue To Battle Discrimination Over Gender Ideology



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FOSTER CARE

BY RYAN FOLEY/THE WASHINGTON STAND MAY 01, 2026

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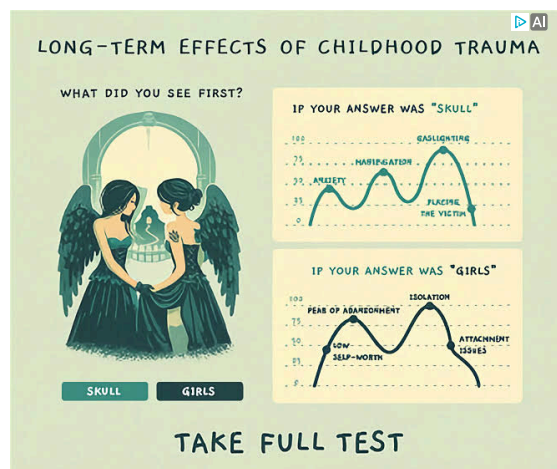
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A federal court in Washington rejected a motion to dismiss a lawsuit filed by a Christian couple who say they were denied an unrestricted foster license by the state because they wouldn't adhere to LGBT ideology.

In an opinion published Wednesday, Judge David G. Estudillo of the U.S. District Court for the Western District of Washington denied a motion by the state to dismiss a lawsuit filed by Jennifer and Shane DeGross over the Washington Department of Children, Youth and Families' refusal to grant them a full foster care license.

"In essence, the Department has forced the DeGrosses to choose between forfeiting their freedom of speech to obtain an unrestricted license, or upholding their beliefs surrounding [Sexual Orientation, Gender Identity, and Expression], and receiving a less-favorable license subject to certain requirements," Estudillo, a Biden appointee, stated.



The DeGrosses served as foster parents in Washington from 2013 to 2022. But when they sought to renew their license in 2022, they became aware of the state's requirement that foster parents provide children "with resources that supports and affirms their needs regarding" sexual orientation, gender identity and expression and agree to use trans-identified children's "pronouns and chosen name, and respect the child's right to privacy concerning their gender identity."

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and the Equal Protection Clause of the Fourteenth Amendment.

In early 2025, the DeGrosses submitted a foster care application with a waiver clarifying their intention to "support a child's right to privacy concerning their SOGIE" and "avoid the use of pronouns which are contrary to the child's biological sex." They also agreed to undergo training "so long as they were not required to change their sincerely held religious beliefs."



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The state approved the waiver request, limiting the DeGrosses to caring for children ages 2 to 5 and allowing them to care for older children only on a short-term basis. After the waiver was issued, the DeGrosses submitted a revised complaint alleging that the process for obtaining a waiver was "burdensome" and that their foster care license "arbitrarily limits them to caring for only some child[ren] in only some ways."

Characterizing their treatment as "worse than similarly situated foster parents with analogous conscience-based objections to supporting a child's religious or cultural identities and practices," the DeGrosses accused state officials of violating their free speech, free exercise and free association rights under the First Amendment, as well as the Equal Protection Clause of the 14th Amendment.

In response, defendants filed a motion to dismiss the complaint for failure to state a claim.

While Estudillo concluded that the DeGrosses' claims related to free speech and free exercise survived the motion to dismiss, it dismissed the couple's Equal Protection claims and their claim against Washington Secretary of Children, Youth and Families Ross Hunter in his personal capacity.

The court's conclusion that the free speech and free exercise claims have merit will allow the couple to file an amended complaint by May 13, enabling the lawsuit to continue.

"The DeGrosses have carried their burden to show that the Department's enforcement of Policy § 1520 plausibly constitutes impermissible viewpoint discrimination," the judge wrote.

The nonprofit legal organization Alliance Defending Freedom (ADF), which represents the DeGrosses, is optimistic that the policy will ultimately be found unconstitutional.

"When children are sleeping on cots in child-welfare offices for lack of loving homes, states like Washington should be doing everything they can to bring in more qualified foster parents," said ADF Senior Counsel Johannes Widmalm-Delphonse in a statement reacting to the ruling. "But Washington state is putting its own ideological agenda ahead of children's needs, even though a federal court already enjoined a similarly unconstitutional policy in 2021."

Widmalm-Delphonse notes that a 2021 ruling by the U.S. District Court for the Eastern District of Washington prohibited the state from "requiring a foster family home license applicant or a family home study applicant to express agreement with any policy regarding LGBTQ+ issues that conflicts with the applicant's sincerely held religious views."

Widmalm-Delphonse urged Washington to "take the hint and end its unconstitutional and discriminatory policy."

Originally published at The Washington Stand (<https://washingtonstand.com/article/washington-law-forcing-christian-foster-parents-to-embrace-lgbt-ideology-may-be-discriminatory-judge>)

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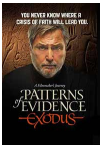
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